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Apostolos Suos (May 21, 1998)

HIS HOLINESS POPE JOHN PAUL II

APOSTOLIC LETTER ISSUED "MOTU PROPRIO"

APOSTOLOS SUOS

ON THE THEOLOGICAL AND JURIDICAL NATURE OF EPISCOPAL CONFERENCES (1)

I

INTRODUCTION

1. The Lord Jesus constituted the Apostles "in the form of a college or permanent assembly, at the head of which he placed Peter, chosen from amongst them".(2) The Apostles were not chosen and sent by Jesus independently of one another, but rather as part of the group of the Twelve , as the Gospels make clear by the repeatedly used expression, "one of the Twelve".(3) To all of them together the Lord entrusted the mission of preaching the Kingdom of God,(4) and they were sent by him, not individually, but two by two.(5) At the Last Supper Jesus prayed to the Father for the unity of the Apostles and of those who through their word would believe in him.(6) After his Resurrection and before the Ascension, the Lord reconfirmed Peter in the supreme pastoral office (7) and entrusted to the Apostles the same mission which he had himself received from the Father.(8)

With the descent of the Holy Spirit on the day of Pentecost, the Apostolic College showed itself filled with the new vitality which comes from the Paraclete. Peter, "standing with the Eleven",(9) speaks to the crowd and baptizes a large number of believers; the first community appears united in listening to the teaching of the Apostles (10) and accepts their decision in relation to pastoral problems.(11) It was to the Apostles who had remained in Jerusalem that Paul turned in order to ensure his communion with them and not risk having run in vain.(12) The Apostles' awareness that they constituted an undivided body was also demonstrated when the question arose whether or not Christians converted from paganism were obliged to observe certain precepts of the Old Law. At that time, in the community of Antioch, "Paul and Barnabas and some of the others were appointed to go up to Jerusalem to the Apostles and the elders about this question".(13) In order to examine the problem the Apostles and the elders meet, consult one another and deliberate, guided by the authority of Peter, and finally issue their decision: "It has seemed good to the Holy Spirit and to us to lay upon you no greater burden than these necessary things...".(14)

2. The saving mission which the Lord entrusted to the Apostles will last until the end of the world.(15) For this mission to be carried out, in accordance with Christ's will, the Apostles themselves "were careful to appoint successors... Bishops have by divine institution taken the place of the Apostles as pastors of the Church".(16) Indeed, in order to carry out the pastoral ministry, "the Apostles were endowed by Christ with a special outpouring of the Holy Spirit coming upon them",(17) and by the imposition of hands they passed on to their assistants the gift of the Holy Spirit,(18) a gift which is transmitted down to our day through episcopal consecration".(19)

"Just as, in accordance with the Lord's decree, Saint Peter and the rest of the Apostles constitute one apostolic college, so in like fashion the Roman Pontiff, Peter's Successor, and the Bishops, the successors of the Apostles, are joined to one another".(20) Thus, all the Bishops in common have received from Christ the mandate to proclaim the Gospel in every part of the world and are consequently bound to have concern for the whole Church. So too, for the fulfilment of the mission entrusted to them by the Lord, they are held to cooperate with one another and with the Successor of Peter,(21) in whom the Lord established "the lasting and visible source and foundation of the unity both of faith and of communion".(22) The individual Bishops are in turn the source and foundation of unity in their particular Churches.(23)

3 . Without prejudice to the power which each Bishop enjoys by divine institution in his own particular Church, the

consciousness of being part of an undivided body has caused Bishops throughout the Church's history to employ, in the fulfilment of their mission, means, structures and ways of communicating which express their communion and solicitude for all the Churches, and prolong the very life of the College of the Apostles: pastoral cooperation, consultation, mutual assistance, etc.

From the first centuries on, the reality of this communion has found an outstanding and typical expression in the holding of Councils. Worthy of mention among these are, together with the Ecumenical Councils which began with the Council of Nicaea in 325, the Particular Councils, both plenary and provincial, which were frequently held throughout the Church from the second century on.(24)

The practice of holding Particular Councils continued throughout the Middle Ages. Following the Council of Trent (1545-1563), however, they became less frequent. Nevertheless, the 1917 Code of Canon Law, seeking to revitalize so venerable an institution, included provisions for the celebration of Particular Councils. Canon 281 of that Code spoke of the plenary Council and laid down that it could be held with the authorization of the Supreme Pontiff, who would designate a delegate to convene the Council and preside over it. The same Code called for provincial Councils to be held at least every twenty years (25) and conferences or assemblies of the Bishops in each province to be held at least every five years, in order to deal with the problems of the Dioceses and prepare for the provincial Council.(26) The new Code of Canon Law of 1983 retains a considerable body of laws governing Particular Councils, both plenary and provincial.(27)

4. Alongside the tradition of Particular Councils and in harmony with it, starting in the last century, for historical, cultural and sociological reasons, Conferences of Bishops began to be established in different countries. These Conferences were set up for specific pastoral purposes, as a means of responding to different ecclesiastical questions of common interest and finding appropriate solutions to them. Unlike Councils, they had a stable and permanent character. The Instruction of the Sacred Congregation of Bishops and Regulars issued on 24 August 1889 mentions them expressly by the name "Episcopal Conferences".(28)

The Second Vatican Council, in the Decree Christus Dominus , not only expressed the hope that the venerable institution of Particular Councils would be revitalized (cf. No. 36), but also dealt explicitly with Episcopal Conferences, acknowledging the fact that they had been established in many countries and laying down particular norms regarding them (cf. Nos. 37-38). Indeed, the Council recognized the usefulness and the potential of these structures, and judged that "it would be in the highest degree helpful if in all parts of the world the Bishops of each country or region would meet regularly, so that by sharing their wisdom and experience and exchanging views they may jointly formulate a programme for the common good of the Church".(29)

5. In 1966, Pope Paul VI, by the Motu Proprio Ecclesiae Sanctae , called for Episcopal Conferences to be established wherever they did not yet exist; those already existing were to draw up proper statutes; and in cases where it was not possible to establish a Conference, the Bishops in question were to join already existing Episcopal Conferences; Episcopal Conferences comprising several nations or even international Episcopal Conferences could be established.(30) Several years later, in 1973, the Pastoral Directory for Bishops stated once again that "the Episcopal Conference is established as a contemporary means of contributing in a varied and fruitful way to the practice of collegiality. These Conferences admirably help to foster a spirit of communion with the Universal Church and among the different local Churches.(31) Finally, the Code of Canon Law, promulgated by me on January 25, 1983, established specific norms (Canons 447-459) regulating the objectives and the powers of Episcopal Conferences, as well as their erection, membership and functioning.

The collegial spirit which inspired the establishment of Episcopal Conferences and guides their activity is also the reason why Conferences of different countries should cooperate among themselves, as the Second Vatican Council recommended (32) and the subsequent canonical legislation reaffirmed.(33)

6. Following the Second Vatican Council, Episcopal Conferences have developed significantly and have become the preferred means for the Bishops of a country or a specific territory to exchange views, consult with one another and cooperate in promoting the common good of the Church: "in recent years they have become a concrete, living and efficient reality throughout the world".(34) Their importance is seen in the fact that they contribute effectively to unity

between the Bishops, and thus to the unity of the Church, since they are a most helpful means of strengthening ecclesial communion. Even so, the growing extent of their activities has raised some questions of a theological and pastoral nature, especially with regard to their relationship to the individual Diocesan Bishops.

7. Twenty years after the close of the Second Vatican Council, the Extraordinary Assembly of the Synod of Bishops, held in 1985, acknowledged the pastoral usefulness, indeed the need, in the present circumstances of Episcopal Conferences. It also observed that "in their manner of proceeding, Episcopal Conferences must keep in mind the good of the Church, that is, the service of unity and the inalienable responsibility of each Bishop in relation to the universal Church and to his particular Church".(35) The Synod therefore called for a fuller and more profound study of the theological and, consequently, the juridical status of Episcopal Conferences, and above all of the issue of their doctrinal authority, in the light of No. 38 of the conciliar Decree Christus Dominus and Canons 447 and 753 of the Code of Canon Law.(36)

The present document also is a fruit of that study. In strict fidelity to the documents of the Second Vatican Council, its aim is to set out the basic theological and juridical principles regarding Episcopal Conferences, and to offer the juridical synthesis indispensable for helping to establish a theologically well-grounded and juridically sound praxis for the Conferences.

II

COLLEGIAL UNION AMONG BISHOPS

8. In the universal communion of the People of God, for the service of which the Lord instituted the apostolic ministry, the collegial union of Bishops shows forth the nature of the Church. Being on earth the source and the beginning of the Kingdom of God, the Church is "a lasting and sure seed of unity, hope and salvation for the whole human race".(37) Just as the Church is one and universal, so also is the Episcopacy one and indivisible,(38) extending as far as the visible structure of the Church and expressing her rich variety. The visible source and foundation of this unity is the Roman Pontiff, the head of the episcopal body.

The unity of the Episcopacy is one of the constitutive elements of the unity of the Church.(39) In fact, through the body of Bishops "the apostolic tradition is manifested and preserved throughout the world"; (40) and the essential components of ecclesial communion are the sharing of the same faith, the deposit of which is entrusted to their care, the taking part in the same Sacraments, "the regular and fruitful distribution of which they direct by their authority",(41) and the loyalty and obedience shown to them as Pastors of the Church. This communion, precisely because it extends throughout the whole Church, forms the structure also of the College of Bishops, and is "an organic reality which demands a juridical form, and is at the same time animated by charity".(42)

9. Collegially, the order of Bishops is, "together with its head, the Roman Pontiff, and never without this head, the subject of supreme and full power over the universal Church".(43) As it is well known, in teaching this doctrine, the Second Vatican Council likewise noted that the Successor of Peter fully retains "his power of primacy over all, pastors as well as the general faithful. For in virtue of his office, that is, as Vicar of Christ and pastor of the whole Church, the Roman Pontiff has full, supreme and universal power over the Church. And he can always exercise this power freely".(44)

The supreme power which the body of Bishops possesses over the whole Church cannot be exercised by them except collegially, either in a solemn way when they gather together in ecumenical Council, or spread throughout the world, provided that the Roman Pontiff calls them to act collegially or at least freely accepts their joint action. In such collegial acts, the Bishops exercise a power which is proper to them for the good of their faithful and of the whole Church, and, although conscientiously respecting the primacy and pre-eminence of the Roman Pontiff, head of the College of Bishops, they are not acting as his vicars or delegates.(45) There, it is clear that they are acting as Bishops of the Catholic Church, for the benefit of the whole Church, and as such they are recognized and respected by the faithful.

10. Equivalent collegial actions cannot be carried out at the level of individual particular Churches or of gatherings of such Churches called together by their respective Bishops. At the level of an individual Church, it is in the name of the

Lord that the diocesan Bishop leads the flock entrusted to him, and he does so as the proper, ordinary and immediate Pastor. His actions are strictly personal, not collegial, even when he has a sense of being in communion. Moreover, although he has the fullness of the power of the Sacrament of Orders, he does not exercise the supreme power which belongs to the Roman Pontiff and to the College of Bishops as elements proper to the universal Church, elements present within each particular Church in order that it may fully be Church, that is, a particular presence of the universal Church with all the essential elements pertaining thereto.(46)

At the level of particular Churches grouped together by geographic areas (by countries, regions, etc.), the Bishops in charge do not exercise pastoral care jointly with collegial acts equal to those of the College of Bishops.

11. To provide a correct framework for better understanding how collegial union is manifested in the joint pastoral action of the Bishops of a geographic area, it is useful to recall-even briefly-how individual Bishops, in their ordinary pastoral ministry, are related to the universal Church. It is necessary, in fact, to remember that the membership of individual Bishops in the College of Bishops is expressed, relative to the entire Church, not only in so-called collegial acts, but also in the care for the whole Church which, although not exercised by acts of jurisdiction, nonetheless contributes greatly to the good of the universal Church. All Bishops, in fact, must promote and defend the unity of faith and the discipline which is common to the whole Church, and foster every activity which is common to the whole Church, especially in efforts to increase faith and to make the light of truth shine on all people.(47) "For the rest, it is true that by governing well their own Church as a portion of the universal Church, they themselves are effectively contributing to the welfare of the whole Mystical Body, which is also the body of the Churches".(48)

Bishops contribute to the good of the universal Church not only by the proper exercise of the munus regendi in their particular Churches, but also by the exercise of the offices of teaching and sanctifying.

Certainly the individual Bishops, as teachers of the faith, do not address the universal community of the faithful except through the action of the entire College of Bishops. In fact, only the faithful entrusted to the pastoral care of a particular Bishop are required to accept his judgement given in the name of Christ in matters of faith and morals, and to adhere to it with a religious assent of soul. In effect, "Bishops, teaching in communion with the Roman Pontiff, are to be respected by all as witnesses to divine and Catholic truth"; (49) and their teaching, inasmuch as it transmits faithfully and illustrates the faith to be believed and applied in living, is of great benefit to the whole Church.

The individual Bishop too, as "steward of the grace of the supreme priesthood",(50) in the exercise of his office of sanctifying contributes greatly to the Church's work of glorifying God and making men holy. This is a work of the whole Church of Christ, acting in every legitimate liturgical celebration carried out in communion with the Bishop and under his direction.

12. When the Bishops of a territory jointly exercise certain pastoral functions for the good of their faithful, such joint exercise of the episcopal ministry is a concrete application of collegial spirit (affectus collegialis),(51) which "is the soul of the collaboration between the Bishops at the regional, national and international levels".(52) Nonetheless, this territorially based exercise of the episcopal ministry never takes on the collegial nature proper to the actions of the order of Bishops as such, which alone holds the supreme power over the whole Church. In fact, the relationship between individual Bishops and the College of Bishops is quite different from their relationship to the bodies set up for the above-mentioned joint exercise of certain pastoral tasks.

The collegiality of the actions of the body of Bishops is linked to the fact that "the universal Church cannot be conceived as the sum of the particular Churches, or as a federation of particular Churches".(53) "It is not the result of the communion of the Churches, but, in its essential mystery, it is a reality ontologically and temporally prior to every individual particular Church".(54) Likewise the College of Bishops is not to be understood as the aggregate of the Bishops who govern the particular Churches, nor as the result of their communion; rather, as an essential element of the universal Church, it is a reality which precedes the office of being the head of a particular Church.(55) In fact, the power of the College of Bishops over the whole Church is not the result of the sum of the powers of the individual Bishops over their particular Churches; it is a pre-existing reality in which individual Bishops participate. They have no competence to act over the whole Church except collegially. Only the Roman Pontiff, head of the College, can individually exercise supreme power over the Church. In other words, "episcopal collegiality in the strict and proper sense belongs only to the

entire College of Bishops, which as a theological subject is indivisible".(56) And this is the express will of the Lord.(57) This power, however, should not be understood as dominion; rather, essential to it is the notion of service, because it is derived from Christ, the Good Shepherd who lays down his life for the sheep.(58)

13. Groupings of particular Churches are related to the Churches of which they are composed, because of the fact that those groupings are based on ties of common traditions of Christian life and because the Church is rooted in human communities united by language, culture and history. These relationships are very different from the relationship of mutual interiority of the universal Church with respect to the particular Churches.

Likewise, the organizations formed by the Bishops of a certain territory (country, region, etc.) and the Bishops who are members of them share a relationship which, although presenting a certain similarity, is really quite different from that which exists between the College of Bishops and the individual Bishops. The binding effect of the acts of the episcopal ministry jointly exercised within Conferences of Bishops and in communion with the Apostolic See derives from the fact that the latter has constituted the former and has entrusted to them, on the basis of the sacred power of the individual Bishops, specific areas of competence.

The joint exercise of certain acts of the episcopal ministry serves to make effective the solicitude of each Bishop for the whole Church, notably expressed in fraternal assistance to other local Churches, especially those which are closer and more needy,(59) and which likewise is conveyed in the union of efforts and aims with the other Bishops of the same geographic area, in order to promote both the common good and the good of the individual Churches.(60)

III

EPISCOPAL CONFERENCES

14. Episcopal Conferences constitute a concrete application of the collegial spirit. Basing itself on the prescriptions of the Second Vatican Council, the Code of Canon Law gives a precise description: "The Conference of Bishops, a permanent institution, is a grouping of Bishops of a given country or territory whereby, according to the norm of law, they jointly exercise certain pastoral functions on behalf of the Christian faithful of their territory in view of promoting that greater good which the Church offers humankind, especially through forms and programs of the apostolate which are fittingly adapted to the circumstances of the time and place".(61)

15. The Council clearly highlighted the need in our day for harmonizing the strengths deriving from the interchange of prudence and experience within the Episcopal Conference, since "Bishops are frequently unable to fulfill their office suitably and fruitfully unless they work more harmoniously and closely every day with other Bishops".(62) It is not possible to give an exhaustive list of the issues which require such cooperation but it escapes no one that issues which currently call for the joint action of Bishops include the promotion and safeguarding of faith and morals, the translation of liturgical books, the promotion and formation of priestly vocations, the preparation of catechetical aids, the promotion and safeguarding of Catholic universities and other educational centres, the ecumenical task, relations with civil authorities, the defence of human life, of peace, and of human rights, also in order to ensure their protection in civil legislation, the promotion of social justice, the use of the means of social communication, etc.

16. Episcopal Conferences are, as a rule, national, that is, they bring together the Bishops of one country only,(63) since the links of culture, tradition and common history, as well as the interconnection of social relations among citizens of the same nation require more constant collaboration among the members of the episcopate of that territory than the ecclesial circumstances of another territorial entity might require. Nevertheless, canonical legislation makes provision for an Episcopal Conference to "be erected for a smaller or larger territory so that it includes either the Bishops of some particular churches constituted in a given territory or those presiding over particular churches belonging to different countries".(64) It follows that there can be Episcopal Conferences of varying territorial extension or of a super-national extension. The judgement on the circumstances relative to persons or things which suggest a greater or lesser extension of the territory of a Conference is reserved to the Holy See. In fact, "after hearing the Bishops involved, it pertains to the supreme Church authority alone to erect, suppress or change the Conferences of Bishops".(65)

17. Since the purpose of the Conferences of Bishops is to provide for the common good of the particular Churches of a

territory through the collaboration of the sacred pastors to whose care they are entrusted, every individual Conference is to include all the diocesan Bishops of the territory and those who in law are equivalent to them, as well as coadjutor Bishops and the other titular Bishops who exercise a special task entrusted to them by the Holy See or by the Episcopal Conference itself.(66) In the plenary meetings of the Episcopal Conference, the deliberative vote belongs to diocesan Bishops and to those who are equivalent to them in law, as well as to coadjutor Bishops; and this by reason of the law itself. The statutes of the Conference cannot provide otherwise.(67) The President and Vice-President of the Episcopal Conference must be chosen only from among the members who are diocesan Bishops.(68) As regards auxiliary Bishops and other titular Bishops who are members of the Episcopal Conference, the statues of the Conference should determine whether their vote is deliberative or consultative.(69) In this respect, the proportion between diocesan Bishops and auxiliary and other titular Bishops should be taken into account, in order that a possible majority of the latter may not condition the pastoral government of the diocesan Bishops. However, it is appropriate that the statutes of Episcopal Conferences allow for the presence of Bishops emeriti , and that they have a consultative vote. Particular care should be taken to enable them to take part in some study Commissions, when these deal with issues in which a Bishop emeritus is particularly competent. Given the nature of the Episcopal Conference, a member's participation in the Conference cannot be delegated to someone else.

18. Every Episcopal Conference has its own statutes, which it frames itself. These must however receive the recognitio of the Apostolic See. Among other things these are "to provide for the holding of plenary meetings of the Conference as well as for the establishment of a permanent council, of a general secretariat of the Conference, and other offices and commissions which in the judgement of the Conference will help it fulfil its aims more effectively".(70) Such aims, however, require that an excessively bureaucratic development of offices and commissions operating between plenary sessions be avoided. The essential fact must be kept in mind that the Episcopal Conferences with their commissions and offices exist to be of help to the Bishops and not to substitute for them.

19. The authority of the Episcopal Conference and its field of action are in strict relation to the authority and action of the diocesan Bishop and the Bishops equivalent to them in law. Bishops "preside in the place of God over the flock whose shepherds they are, as teachers of doctrine, priests of sacred worship and ministers of government. (...) By divine institution, Bishops have succeeded to the Apostles as Shepherds of the Church",(71) and they "govern the particular churches entrusted to them as the vicars and ambassadors of Christ, by their counsel, exhortations and example, but also by their authority and sacred power (...). This power, which they personally exercise in Christ's name is proper, ordinary and immediate".(72) Its exercise is regulated by the supreme authority of the Church, and this is the necessary consequence of the relation between the universal Church and the particular Church, since the latter exists only as a portion of the People of God "in which the one catholic Church is truly present and operative".(73) In fact, "the primacy of the Bishop of Rome and the episcopal College are proper elements of the universal Church that are not derived from the particularity of the churches, but are nevertheless interior to each particular Church".(74) As part of such regulation, the exercise of the sacred power of the Bishop "can be circumscribed by certain limits, for the advantage of the Church or of the faithful".(75) This provision is found explicitly in the Code of Canon Law where we read: "A diocesan Bishop in the diocese committed to him possesses all the ordinary, proper and immediate power which is required for the exercise of his pastoral office except for those cases which the law or a decree of the Supreme Pontiff reserves to the supreme authority of the Church or to some other ecclesiastical authority".(76)

20. In the Episcopal Conference the Bishops jointly exercise the episcopal ministry for the good of the faithful of the territory of the Conference; but, for that exercise to be legitimate and binding on the individual Bishops, there is needed the intervention of the supreme authority of the Church which, through universal law or particular mandates, entrusts determined questions to the deliberation of the Episcopal Conference. Bishops, whether individually or united in Conference, cannot autonomously limit their own sacred power in favour of the Episcopal Conference, and even less can they do so in favour of one of its parts, whether the permanent council or a commission or the president. This logic is quite explicit in the canonical norm concerning the exercise of the legislative power of the Bishops assembled in the Episcopal Conference: "The Conference of Bishops can issue general decrees only in those cases in which the common law prescribes it, or a special mandate of the Apostolic See, given either motu proprio or at the request of the Conference, determines it".(77) In other cases "the competence of individual diocesan Bishops remains intact; and neither the Conference nor its president may act in the name of all the Bishops unless each and every Bishop has given his consent".(78)

21 . The joint exercise of the episcopal ministry also involves the teaching office. The Code of Canon Law establishes the fundamental norm in this regard: "Although they do not enjoy infallible teaching authority, the Bishops in communion with the head and members of the college, whether as individuals or gathered in Conferences of Bishops or in particular councils, are authentic teachers and instructors of the faith for the faithful entrusted to their care; the faithful must adhere to the authentic teaching of their own Bishops with a sense of religious respect (religioso animi obsequio)".(79) Apart from this general norm the Code also establishes, more concretely, some areas of doctrinal competence of the Conferences of Bishops, such as providing "that catechisms are issued for its own territory if such seems useful, with the prior approval of the Apostolic See",(80) and the approval of editions of the books of Sacred Scripture and their translations.(81)

The concerted voice of the Bishops of a determined territory, when, in communion with the Roman Pontiff, they jointly proclaim the catholic truth in matters of faith and morals, can reach their people more effectively and can make it easier for their faithful to adhere to the magisterium with a sense of religious respect. In faithfully exercising their teaching office, the Bishops serve the word of God, to which their teaching is subject, they listen to it devoutly, guard it scrupulously and explain it faithfully in such a way that the faithful receive it in the best manner possible.(82) Since the doctrine of the faith is a common good of the whole Church and a bond of her communion, the Bishops, assembled in Episcopal Conference, must take special care to follow the magisterium of the universal Church and to communicate it opportunely to the people entrusted to them.

22 . In dealing with new questions and in acting so that the message of Christ enlightens and guides people's consciences in resolving new problems arising from changes in society, the Bishops assembled in the Episcopal Conference and jointly exercizing their teaching office are well aware of the limits of their pronouncements. While being official and authentic and in communion with the Apostolic See, these pronouncements do not have the characteristics of a universal magisterium. For this reason the Bishops are to be careful to avoid interfering with the doctrinal work of the Bishops of other territories, bearing in mind the wider, even world-wide, resonance which the means of social communication give to the events of a particular region.

Taking into account that the authentic magisterium of the Bishops, namely what they teach insofar as they are invested with the authority of Christ, must always be in communion with the Head of the College and its members,(83) when the doctrinal declarations of Episcopal Conferences are approved unanimously, they may certainly be issued in the name of the Conferences themselves, and the faithful are obliged to adhere with a sense of religious respect to that authentic magisterium of their own Bishops. However, if this unanimity is lacking, a majority alone of the Bishops of a Conference cannot issue a declaration as authentic teaching of the Conference to which all the faithful of the territory would have to adhere, unless it obtains the recognitio of the Apostolic See, which will not give it if the majority requesting it is not substantial. The intervention of the Apostolic See is analogous to that required by the law in order for the Episcopal Conference to issue general decrees.(84) The recognitio of the Holy See serves furthermore to guarantee that, in dealing with new questions posed by the accelerated social and cultural changes characteristic of present times, the doctrinal response will favour communion and not harm it, and will rather prepare an eventual intervention of the universal magisterium.

23. The very nature of the teaching office of Bishops requires that, when they exercise it jointly through the Episcopal Conference, this be done in the plenary assembly. Smaller bodies -the permanent council, a commission or other offices-do not have the authority to carry out acts of authentic magisterium either in their own name or in the name of the Conference, and not even as a task assigned to them by the Conference.

24. At present, Episcopal Conferences fulfill many tasks for the good of the Church. They are called to support, in a growing service, "the inalienable responsibility of each Bishop in relation to the universal Church and to his particular Church" (85) and, naturally, not to hinder it by substituting themselves inappropriately for him, where the canonical legislation does not provide for a limitation of his episcopal power in favour of the Episcopal Conference, or by acting as a filter or obstacle as far as direct contact between the individual Bishops and the Apostolic See is concerned.

The clarifications thus far expressed, together with the normative adjustments which follow, correspond to the wishes of the Extraordinary General Assembly of the Synod of Bishops of 1985, and they aim at illuminating and making more efficacious the action of Episcopal Conferences. The Conferences will opportunely review their statutes in order to bring

them into line with these clarifications and norms, as called for by the Synod.

IV

COMPLEMENTARY NORMS REGARDING THE CONFERENCES OF BISHOPS

Art. 1. - In order that the doctrinal declarations of the Conference of Bishops referred to in No. 22 of the present Letter may constitute authentic magisterium and be published in the name of the Conference itself, they must be unanimously approved by the Bishops who are members, or receive the recognitio of the Apostolic See if approved in plenary assembly by at least two thirds of the Bishops belonging to the Conference and having a deliberative vote.

Art. 2. - No body of the Episcopal Conference, outside of the plenary assembly, has the power to carry out acts of authentic magisterium. The Episcopal Conference cannot grant such power to its Commissions or other bodies set up by it.

Art. 3. - For statements of a different kind, different from those mentioned in article 2, the Doctrinal Commission of the Conference of Bishops must be authorized explicitly by the Permanent Council of the Conference.

Art. 4. - The Episcopal Conferences are to review their statutes in order that they may be consistent with the clarifications and norms of the present document as well as the Code of Canon Law, and they should send them subsequently to the Apostolic See for recognitio , in accordance with canon 451 of the Code of Canon Law.

In order that the action of Episcopal Conferences be ever more fruitful in good works, I cordially impart my Apostolic Blessing.

Given in Rome, at Saint Peter's, on 21 May, Solemnity of the Ascension of the Lord, in the year 1998, the twentieth of my Pontificate.

JOHN PAUL II

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(1) The Oriental Churches headed by Patriarchs and Major Archbishops are governed by their respective Synods of Bishops, endowed with legislative, judicial and, in certain cases, administrative power (cf. Code of Canons of the Eastern Churches , Canons 110 and 152): the present document does not deal with these. Hence no analogy may be drawn between such Synods and Episcopal Conferences. This document does concern Assemblies established in areas where there exist several Churches sui iuris regulated by Code of Canons of the Eastern Churches , Canon 322, and by their relative Statutes approved by the Apostolic See (cf. Code of Canons of the Eastern Churches , Canon 322, 4; Apostolic Constitution Pastor Bonus , Art. 58), to the extent that these Assemblies are comparable to Episcopal Conferences (cf. Second Vatican Ecumenical Council, Decree on the Pastoral Office of Bishops in the Church Christus Dominus , 38).

(2) Cf. Second Vatican Ecumenical Council, Dogmatic Constitution on the Church Lumen Gentium , 19; cf. Mt 10:1-4; 16:18; Mk 3:13-19; Lk 6:13; Jn 21:15-17.

(3) Cf. Mt 26:14; Mk 14:10,20,43; Lk 22:3,47; Jn 6:72; 20:24.

(4) Cf. Mt 10:5-7; Lk 9:1-2.

(5) Cf. Mk 6:7.

(6) Cf. Jn 17:11,18,20-21.

(7) Cf. Jn 21:15-17.

(8) Cf. Jn 20:21; Mt 28:18-20.

(9) Acts 2:14.

(10) Cf. Acts 2:42.

(11) Cf. Acts 6:1-6.

(12) Cf. Gal 2:1-2,7-9.

(13) Acts 15:2.

(14) Acts 15:28.

(15) Cf. Mt 28:18-20.

(16) Second Vatican Ecumenical Council, Dogmatic Constitution on the Church Lumen Gentium , 20.

(17) Cf. Acts 1:8; 2:4; Jn 20:22-23.

(18) Cf. 1 Tim 4:14; 2 Tim 1:6-7.

(19) Second Vatican Ecumenical Council, Dogmatic Constitution on the Church Lumen Gentium , 21.

(20) Ibid., 22.

(21) Cf. ibid. , 23.

(22) Ibid., 18. Cf. ibid ., 22-23; Nota explicativa praevia, 2; First Vatican Ecumenical Council, Dogmatic Constitution Pastor Aeternus , Prologus: DS 3051.

(23) Cf. Second Vatican Ecumenical Council, Dogmatic Constitution on the Church Lumen Gentium , 23.

(24) For some second-century Councils, cf. Eusebius of Caesarea, Historia Ecclesiastica , V, 16, 10; 23, 2-4; 24, 8: SC 41, pp. 49, 66-67, 69. Tertullian, at the beginning of the third century, praises the Greek usage of celebrating Councils (cf. De Ieiunio , 13, 6: CCL 2,1272). From the letters of Saint Cyprian of Carthage we learn of different African and Roman Councils beginning with the second or third decade of the third century (cf. Epist. 55, 6; 57; 59, 13, 1; 61; 64; 67; 68, 2, 1; 70; 71, 4, 1; 72; 73, 1-3: Bayard (ed.), Les Belles Lettres , Paris 1961, II, pp. 134-135; 154-159; 180; 194-196; 213-216; 227-234; 235; 252-256; 259; 259-262; 262-264). For Councils of Bishops in the second and third centuries, cf. K. J. Hefele, Histoire des Conciles , I, Adrien le Clere, Paris 1869, pp. 77-125.

(25) Cf. Code of Canon Law (1917), Canon 283.

(26) Cf. Code of Canon Law (1917), Canon 292.

(27) Cf. Code of Canon Law , Canons 439-446.

(28) Sacra Congregatio Episcoporum et Regularium, Instructio "Alcuni Arcivescovi", De collationibus quolibet anno ab Italis Episcopis in variis quae designantur Regionibus habendis (24 August 1889): Leonis XIII Acta , IX (1890), p. 184.

(29) Second Vatican Ecumenical Council, Decree on the Pastoral Office of Bishops in the Church Christus Dominus , 37; cf. Dogmatic Constitution on the Church Lumen Gentium , 23.

(30) Paul VI, Motu Proprio Ecclesiae Sanctae (6 August 1966), I. Normae ad exsequenda Decreta SS. Concilii Vaticani II "Christus Dominus" et "Presbyterorum Ordinis", No. 41: AAS 58 (1966), 773-774.

(31) Congregation for Bishops, Directory Ecclesiae Imago, De Pastorali Ministerio Episcoporum (22 February 1973), 210.

(32) Cf. Decree on the Pastoral Office of Bishops in the Church Christus Dominus , 38, 5.

(33) Cf. Code of Canon Law , Canon 459, 1. Such cooperation has in fact been fostered by the International Meetings of Episcopal Conferences, the Consejo Episcopal Latinoamericano (C.E.L.AM.), the Consilium Conferentiarum Episcopalium Europae (C.C.E.E.), the Secretariado Episcopal de América Central y Panama (S.E.D.A.C.), the Commissio Episcopatuum Communitatis Europaeae (COM.E.C.E.), the Association des Conférences Episcopales de l'Afrique Centrale (A.C.E.A.C.), the Association des Conférences Episcopales de la Région de l'Afrique Centrale (A.C.E.R.A.C.), the Symposium des Conférences Episcopales d'Afrique et de Madagascar (S.C.E.A.M.), the Inter-Regional Meeting of Bishops of Southern Africa (I.M.B.S.A.), the Southern African Catholic Bishops' Conference (S.A.C.B.C.), the Conférences Episcopales de l'Afrique de l'Ouest Francophone (C.E.R.A.O.), the Association of the Episcopal Conferences of Anglophone West Africa (A.E.C.A.W.A.), the Association of Member Episcopal Conferences in Eastern Africa (A.M.E.C.E.A.), the Federation of Asian Bishops' Conferences (F.A.B.C.), the Federation of Catholic Bishops' Conferences of Oceania (F.C.B.C.O.) (Cf. Annuario Pontificio 1998 , Vatican City 1998, pp. 1112-1115). Nevertheless, these institutions are not properly Episcopal Conferences.

(34) John Paul II, Address to the Roman Curia (28 June 1986), No. 7c: AAS 79 (1987), 197.

(35) Final Report , II, C), 5: L'Osservatore Romano , 10 December 1985, p. 7.

(36) Cf. ibid ., II, C), 8, b.

(37) Second Vatican Ecumenical Council, Dogmatic Constitution on the Church Lumen Gentium , 9.

(38) Cf. First Vatican Ecumenical Council, Dogmatic Constitution Pastor Aeternus , Prologus: DS 3051.

(39) Cf. Congregation for the Doctrine of the Faith, Letter Communionis Notio (28 May 1992), 12.

(40) Second Vatican Ecumenical Council, Dogmatic Constitution on the Church Lumen Gentium , 20.

(41) Ibid ., 26.

(42) Ibid ., Nota explicativa praevia, 2.

(43) Ibid ., 22.

(44) Ibid ., 22.

(45) Cf. ibid ., 22; Acta Synodalia Sacrosancti Concilii Oecumenici Vaticani II , vol. III, pars VIII, Typis Poliglottis Vaticanis 1976, p. 77, No. 102.

(46) Cf. Congregation for the Doctrine of the Faith, Letter Communionis Notio (28 May 1992), 13.

(47) Cf. Second Vatican Ecumenical Council, Dogmatic Constitution on the Church Lumen Gentium , 23.

(48) Ibid ., 23.

(49) Ibid ., 25.

(50) Ibid ., 26.

(51) Cf. ibid ., 23.

(52) Synod of Bishops of 1985, Final Report , II, C), 4: L'Osservatore Romano , 10 December 1985, p. 7.

(53) John Paul II, Speech to the Bishops of the United States of America (16 September 1987), 3: Insegnamenti , X, 3 (1987), 555.

(54) Congregation for the Doctrine of the Faith, Letter Communionis Notio (28 May 1992), 9.

(55) Besides, as is clearly evident, there are many Bishops who are not heads of particular Churches, although they perform tasks proper to Bishops.

(56) John Paul II, Address to the Roman Curia (20 December 1990), 6: AAS 83 (1991), 744.

(57) Cf. Second Vatican Ecumenical Council, Dogmatic Constitution on the Church Lumen Gentium , 22.

(58) Cf. Jn 10:11.

(59) Cf. Second Vatican Ecumenical Council, Dogmatic Constitution on the Church Lumen Gentium , 23; Decree on the Bishops' Pastoral Office in the Church Christus Dominus , 6.

(60) Cf. Second Vatican Ecumenical Council, Decree on the Pastoral Office of Bishops in the Church Christus Dominus , 36.

(61) Code of Canon Law , Canon 447; Cf. Second Vatican Ecumenical Council, Decree on the Pastoral Office of Bishops in the Church Christus Dominus , 38, 1.

(62) Second Vatican Ecumenical Council, Decree on the Pastoral Office of Bishops in the Church Christus Dominus , 37.

(63) Cf. Code of Canon Law , Canon 448, 1.

(64) Code of Canon Law , Canon 448, 2.

(65) Code of Canon Law , Canon 449, 1.

(66) Cf. Code of Canon Law , Canon 450, 1.

(67) Cf. Code of Canon Law , Canon 454, 1.

(68) Cf. Pontificia Commissio Codici Iuris Canonici Authentice Interpretando, Responsum ad propositum dubium, Utrum Episcopus Auxiliaris (23 Maii 1988): AAS 81 (1989), 388.

(69) Cf. Code of Canon Law , Canon 454, 2.

(70) Code of Canon Law , Canon 451.

(71) Second Vatican Ecumenical Council, Dogmatic Constitution on the Church, Lumen Gentium , 20.

(72) Ibid ., 27.

(73) Second Vatican Ecumenical Council, Decree on the Pastoral Office of Bishops in the Church Christus Dominus , 11; Code of Canon Law , Canon 368.

(74) Congregation for the Doctrine of the Faith, Letter Communionis Notio (28 May 1992), 13.

(75) Second Vatican Ecumenical Council, Dogmatic Constitution on the Church Lumen Gentium , 27.

(76) Code of Canon Law , Canon 381, 1.

(77) Code of Canon Law , Canon 455, 1. By the expression "general decrees" is also intended the executive decrees mentioned in canons 31-33 of the Code of Canon Law : cf. Pontificia Commissio Codici Iuris Canonici authentice interpretando, Responsum ad propositum dubium Utrum sub locutione (14 maii 1985): AAS 77 (1985), 771.

(78) Code of Canon Law , Canon 455, 4.

(79) Code of Canon Law , Canon 753.

(80) Code of Canon Law , Canon 775, 2.

(81) Cf. Code of Canon Law , Canon 825.

(82) Second Vatican Ecumenical Council, Dogmatic Constitution on Divine Revelation Dei Verbum, 10.

(83) Second Vatican Ecumenical Council, Dogmatic Constitution on the Church Lumen Gentium , 25; Code of Canon Law , Canon 753.

(84) Cf. Code of Canon Law , Canon 455.

(85) Synod of Bishops of 1985, Final Report , II, C), 5: L'Osservatore

Romano , 10 December 1985, p. 7.

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